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There are two relatively similar matters before the court. One is a demurrer by defendant Invasix and the other is a motion for judgment on the pleadings by Inmode. Because they motions are similar, the court discusses them together.

Plaintiff brought this action following a septoplasty and turbinate reduction procedure to help with his sleep apnea. Dr. Alessi recommended an additional Facetite procedure in the neck and chin area for the apnea and cosmetic reasons. The machine used for the procedure was designed and sold by defendants InMode and Invasix. Dr. Alessi allegedly told plaintiff that the machine and probe were specifically designed to be safe and would not burn the skin, and also that the procedure was minimally invasive. Plaintiff agreed to the procedure, and it took place on March 2, 2023. Plaintiff alleges that he was told to pick up prescriptions from the pharmacy but was not told that the prescriptions should have included antibiotics or that there were none in the medication that was dispensed. As a result, plaintiff claims, the recovery was unpleasant and plaintiff developed an infection that did not resolve until June. He also claims that he was burned by the laser during the Facetite procedure and will need another surgery to correct those problems. InMode and Invasix are alleged to have designed, manufactured, assembled, sold, supplied, or distributed the subject machine.

One problem is that the third cause of action is for strict products liability, negligence, and breach of warranty. Those really should be pled separately. The court views the election to lump them together as artful pleading, and the court will not use that as a basis to deny the motion on the theory that a demurrer or MJOP must eliminate an entire cause of action. (The better procedure,

plaintiff states, would be a motion to strike.

The problem with forcing that issue is that we are actually getting close to trial and doing this all over again serves no purpose.)

Turning, then, to the merits, defendants seem to contend in part that one problem is that the causes of action for strict liability, negligence, and breach of warranty overlap.

That may be so, but plaintiff has not had the benefit of discovery. The court will allow plaintiff to plead in the alternative even if the damages may wind up overlapping.

The first major challenge is that plaintiff cannot (the defense contends) sue for strict liability.

The court agrees with regard to the design defect theory. California follows the Restatement on this point. And under the law in California,

a manufacturer is not strictly liable for injuries caused by a medical product that has been properly made and was distributed with proper information regarding the risks and dangers the manufacturer knew or should have known at the time. In other words, for policy reasons, a defect in the design of a product will not be awarded for purposes of strict liability in the context of a medical device.

(Hufft v. Horowitz (1992) 4 Cal.App.4th 8.) The court is aware that Hufft extended a case involving prescription medicine to a case involving an implanted medical device, and this case is neither. But the logic of Hufft supports application of that principle here. In Hufft, the Court of Appeal discussed an earlier case, Brown v. Superior Court (1988) 44 Cal.3d 1049. In Brown, our Supreme Court noted the fear expressed by legislators that the imposition of strict liability in the field of medical drugs may not be in the interest of public policy, a concern set forth in Section 402A of the Restatement (Second) of Torts, comment k, at least to the extent of design. The point is that there are some products that just cannot be capable of being made fully safe, such as certain drugs. The Brown Court observed that this exception still imposes liability on a manufacturer if it failed to warn of a danger about which it should have known, or if the product was not made properly.

But the risk of stifling new medications was too great to allow strict liability on a design theory. The Hufft

court extended that principle to medical implant devices. The court there was concerned that such products serve a salutary purpose, and that the purpose could be undone if strict liability for design could be had.

The court went on to differentiate, as had the court in *Brown*, devices like wheelchairs. Specifically, the Hufft court noted that the device there at issue—a surgical implant—itself poses the potential of harm just to implant it or in its regular and intended use, whereas something like a wheelchair or walker does not. This court believes that similar logic applies here, even though the product is neither a drug nor an implant. There are presumably therapeutic benefits to the Facetite procedure and the device at issue here. The public interest is furthered, not thwarted, but relieving the manufacturer from strict liability for a design defect. Both *Brown* and Hufft suggested avoiding a case-by-case discussion whether to apply comment k to a particular medical device, and this court agrees. The court believes that the strong public policies animating the Restatement, *Brown*, and Hufft, support defendants' arguments here. In particular, strict product liability for design requires that a fact finder weigh the design to determine if the risks inherent in the product are outweighed by the potential benefits and whether it could have been done a different way. The problem is that this is done one fact-finder at a time, and always with the benefit of hindsight and in the context of a specific person.

Courts are ill-suited to make that determination in the medical field, and so are juries. The court notes that strict liability remains a viable cause of action for a manufacturing defect or for failure to warn, as discussed below.

The court agrees with the defense and therefore the demurrer is SUSTAINED and the MJOP is GRANTED, as to the strict liability design defect claim.

The next question is strict liability for a manufacturing issue. Such a defect occurs where the product differs from the manufacturer's intended result or from other identical units from the same product line. That means that where the product is not manufactured as designed, and if that defect was a substantial factor causing injury, then the cause of action will stand. (*Garrett v. Howmedica Osteonics Corp.* (2013) 214 Cal.App.4th 173.) Defendants argue that plaintiff has not identified the specific defect in the product that caused the injury. But the court is not so sure. Plaintiff at least inferentially does so. Plaintiff alleges that during the procedure, plaintiff sustained a third-degree burn leaving a deep scar hole despite the advertisement that the product was safe and would not burn the

skin. Inferentially, it is the part of the product that caused the burn that contains the defect. That is, to be sure, a (very) liberal reading of the complaint. But the court also notes that complaints are to be read in that fashion in the context of a pleading motion, and also that plaintiff has not had a chance to do discovery yet. Recall that the product in question is not in plaintiff's possession, like an allegedly defective dishwasher, where plaintiff can examine the product (or have an expert do so) to identify the specific part that is not manufactured properly. The demurrer on that theory is **OVERRULED** and the MJOP is **DENIED**.

The failure to warn argument also fails. A failure to warn cause of action exists where there is a known danger, or one that should reasonably be known, but there is no warning about the danger. (DeLeon v. Commercial Manufacturing & Supply Co. (1983) 148 Cal.App.3d 336.) Defendants state that the purportedly required warning is unclear, but the court can reasonably infer that the warning that plaintiff alleges should have been given was a warning concerning the injuries that came to pass. The demurrer is **OVERRULED** in this respect and the MJOP is **DENIED**.

The court also disagrees with the defense on the negligence cause of action. While the damages may overlap, they are different torts with somewhat different elements. While potentially duplicative, the court believes there is enough to survive a pleading challenge. And pleading negligence does not require great specificity. The demurrer in this regard is **OVERRULED** and the MJOP is **DENIED**.

There is a problem, though, with the implied warranty cause of action. Defendants contend that the implied warranty exists only when there is privity of contract between the parties. The court agrees. Privity of contract is required in California in order to recover on a theory of breach of the implied warranties for fitness and merchantability. (Blanco v. Baxter Healthcare Corp. (2008) 158 Cal.App.4th 1039.) There is no privity here. The owner of the machine is not plaintiff. In other words, the moving parties did not have a contract with plaintiff, so there is no privity of contract. On this theory, the demurrer is **SUSTAINED** and the MJOP is **GRANTED**.

The court is not persuaded by the third party beneficiary theory. First, it is not pled in the SAC. But beyond that, plaintiff would need to

allege that plaintiff was an intended beneficiary (meaning that the contracting parties intended to provide a benefit to plaintiff) and that permitting the cause of action is consistent with the objectives of the contract and the contracting parties. The court does not believe this is adequately alleged.

So the demurrer is SUSTAINED IN PART AND OVERRULED IN PART, and the MJOP is GRANTED IN PART AND DENIED IN PART. Given that this is the second amended complaint, LEAVE TO AMEND IS DENIED.